

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

CE GLOBAL NETWORK LLP, *Claimant*

v.

OCEAN LINE LOGISTICS, INC., *Respondent*.

DOCKET NO. 2062(F)

Served: September 3, 2026

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON RESPONDENT’S MOTION FOR AN EXTENSION TO FILE ANSWER

On May 21, 2026, the Secretary of the Federal Maritime Commission issued a Notice of Filing of Small Claims Complaint and Assignment, stating that Claimant CE Global Network LLP had filed an informal claim (“Complaint”) against Respondent Ocean Line Logistics, Inc., alleging violations of the Shipping Act. On August 17, 2026, Ocean Line Logistics, Inc. filed a Refusal of Informal Small Claims Procedure (“Refusal”), stating that it does not consent to the resolution of this dispute under the Subpart S procedure. Refusal at 1.

On August 19, 2026, a Notice of Administrative Law Judge Assignment and Instructions was issued (“Instructions”). The Instructions noted that in Commission proceedings, Respondents are required to respond to claims within 25 days of service. 46 C.F.R. § 502.312. As Respondent had not filed an Answer to the Complaint, Respondent was provided additional time to respond. Specifically, the Instructions state: “Respondent must file its answer by September 3, 2026. Failure to respond may result in an adverse decision of the claim.” Instructions at 2.

Respondent did not respond as ordered. Rather, the day before the deadline to respond, Respondent sent an email indicating that it had not received Claimant’s initial claim document or exhibits. The email further stated: “We hereby request such documents be sent by e-mail to our attention immediately. Since the Judge set the response date on September 3, 2026, we hereby request your stipulation (consent) to extend Ocean Line’s time to respond to the said claim, within 14 days after receipt of your initial claim.” September 2, 2026, email.

On September 3, 2026, Claimant resent its Complaint and exhibits as well as its Supplement to Respondent and to our office. Claimant asserts that the Secretary of the Commission served the Complaint on May 21, 2026, and that Claimant served its Supplement on Respondent on August 6, 2026. September 3, 2026, email. Claimant states that: “As to Respondent’s request for additional time to respond, Claimant takes no position and respectfully defers to the Presiding Judge.” September 3, 2026, email.

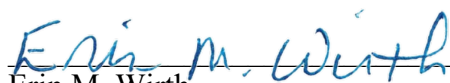
First, it is noted that both Respondent and Claimant failed to copy secretary@fmc.gov. All emails in this proceeding must be sent to the opposing party, judges@fmc.gov, and secretary@fmc.gov. This ensures that the Secretary can post filings on the public docket for this proceeding, found at: [https://www2.fmc.gov/readingroom/proceeding/2062\(F\)](https://www2.fmc.gov/readingroom/proceeding/2062(F)).¹ Any request or filing, such as to extend a deadline or the Answer, should have the case caption and be a separate document (not part of an email), similar to how Respondent filed its Refusal.

Second, Respondent does not explain why it chose to wait until the day before its Answer was due to request a copy of the Complaint. The Office of the Secretary, which served the Complaint, indicates that the complaint was delivered on 05/22/2026 at 10:28 A.M. by UPS with tracking number 1Z1Y2R54NT91204733. Moreover, on August 17, 2026, Respondent declined the Subpart S procedures but did not state that it had not received a copy of the Complaint. By waiting until September 2, 2026, to allege that it had not received documents in a case that was filed in May gives the impression that Respondent is stalling.

Respondent will be given one final opportunity to file its Answer. Respondent requested an additional fourteen days to respond. Given the delays in the proceeding, a shorter time will be permitted.

Respondent has already been warned that: “Failure to respond may result in an adverse decision of the claim.” Instructions at 2. Failure to file an Answer as directed in this order may result in the factual allegations made by Claimant being accepted as true and a decision issued on that basis. In its Answer, Respondent must address all legal and factual issues. Additionally, Respondent must attach any documents supporting its arguments. A final decision will be based upon the information provided by the parties in their Claim, Supplement, Answer, and Reply.

Accordingly, Respondent’s motion for an extension is **GRANTED IN PART**. Respondent must file its Answer by September 14, 2026. Claimant should submit its Reply to Respondent’s Answer 20 days after service of the Respondent’s Answer.


Erin M. Wirth
Chief Administrative Law Judge

¹ The public docket may not include all exhibits filed in a proceeding.